

AGREEMENT FOR REFERENCE TO ARBITRATION BETWEEN THE EXECUTOR AND LEGATEES

Agreement made at.....this....day....of.....between Mr.....hereinafter referred to as the Executor and (1) (2) (3) hereinafter referred to as the Legatees of the other part.

WHEREAS

1. One M.....died at...on the....day of.....leaving behind him his last Will and testament dated

2. By the said Will the said testator appointed Mr..... as a sole executor of the said Will.

3. The Executor has proved the Will and obtained probate thereof from the High Court at on the..... day of.....By the said Will the testator has made some bequests and has bequeathed his residency estate to the Legatees.

Disputes and differences have arisen between the Executor and Legatees regarding the true meaning of certain provisions of the Will and as to the several interests of the Legatees under the said Will in respect of the estate the said testator.

4. The parties have agreed to refer the several disputes and differences to the Arbitration of Mr.....to the intent that the arbitrator may not only determine the right of the parties but may also direct the execution by them or any of them of all deeds and documents necessary to give effect to the decision of the Arbitrator and to vest the properties in the several persons to whom they are bequeathed and for such estates and interest as he may find them proper entitled to.

Now it is agreed between the parties hereto as follows:

That all disputes and differences between the parties inter se that is between the Executor and the Legatees and between the said Legatees themselves are hereby referred to the sole Arbitration of Mr.....

The Arbitrator will not be bound to take oral, evidence and may decide the disputes on the basis of the documents produced by the parties and after hearing oral argument by or on behalf of the parties.

The Arbitrator will not be bound to give reasons.

The cost of arbitration will be in the discretion of the Arbitrator and he will be entitled to make them payable out of the estate of the said Testator.

Sd. Sd/-

Executor. Legatees